

9:00 10	25CV480504	Amanda Butler vs. Steven Cohen, et.al.	Case off calendar
9:00 11	24CV443183	Shenna Huynh vs. REDIS LABS, Inc.	Plaintiff moves this court for monetary and terminating sanctions. Plaintiff argues that Defendant and counsel have not complied with this Court's order to serve verified supplemental response without objection, provide a privilege log, identify the documents responsive to each request, and submit a declaration addressing Slack preservation. Defendant admits that there are discrepancies with Bates misnumbering the privilege log. Defendant now admits that Slack data has been maintained since January 21, 2021 when it earlier represented that Slack data had not been preserved. Defendant asserts that it has been attempting in good faith to rectify its shortcomings. This court finds Defendant's response to be of much concern; however it does note that Defendant appears to be attempting to respond to a voluminous discovery request albeit late. Plaintiff's motion for monetary sanctions in the amount of \$10,320 against Defendants is GRANTED. Plaintiff's motion for terminating sanctions is DENIED.
9:01 1	25CV482021	AVNET, INC.,et. al. vs AMPERE COMPUTING, LLC, et.al.	Jonathan Brinson moves this court to accept his pro hac vice application to appear as counsel for Plaintiff. There is no opposition to Mr. Bronson's application. Mr. Bronson's application is GRANTED.

Calendar Line 2

Case Name: *Darcel Stoner v. SCA of CA, LLC*

Case No.: 24CV434917

Defendant SCA of CA, LLC ("SCA") has brought a motion for judgment on the pleadings ("JOP motion") as to the complaint filed by plaintiff Darcel Stoner ("Stoner"). A JOP motion "is equivalent to a belated general demurrer." (*Sprague v. County of San Diego* (2003) 106 Cal.App.4th 119, 127.) It has the same function as a general demurrer, but it is made after the time for demurrer has expired.

The court GRANTS judicial notice of Exhibit 1 to SCA's request for judicial notice. (SCA's Request for Judicial Notice ("SCA RJN"), Ex. 1.) The court may take judicial notice of records of any court of this state. (Evid. Code, § 452, subd. (d).) Notice is only taken of the existence of these documents. (*Oh v. Teachers Ins. & Annuity Assn. of America* (2020) 53 Cal.App.5th 71, 79-81 (*Oh*) [truth of contents of court records cannot be judicially noticed].)

The court GRANTS judicial notice of Exhibits 1 and 2 to Stoner's request for judicial notice. (Stoner's Request for Judicial Notice ("Stoner RJN"), Exs. 1, 2; see Evid. Code, § 452, subd. (d).) Notice is only taken of the existence of these documents. (*Oh, supra*, 53 Cal.App.5th at pp. 79-81.)

According to SCA, in 2023 Stoner filed a putative class action that remains pending. (Memorandum of Points and Authorities in Support of JOP Motion ("MPA"), p. 6:3-6; see SCA RJN, Ex. 1.) SCA argues that the present action "repackages" the failure to pay allegations at